IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

ITEM No. 120
(CAA)-41(PB)/2018

IN THE MATTER OF:
DLF South Point Ltd. and DLF Commercial Developers Ltd. .... Applicant / petitioner

SECTION:
Under Section 230-232

Order delivered on 02.01.2019

Coram:
CHIEF JUSTICE (RTD.) M.M. KUMAR
Hon'ble President

Sh. S. K. MOHAPATRA,
Hon'ble Member (Technical)

PRESENTS:

For the Petitioner(s):-	Mr. Naveen Dahiya, Adv.
For the Respondent(s):-	Mr. C. Balooni, CP for RD(NR) Mr. Shubham Pandey, Adv. for OL
For the Income Tax:	Ms. Lakshmi Gurung, Standing Counsel with Ms. Easha Kadian, Adv.

ORDER

An affidavit by the Income Tax Department has been filed on 03.12.2018 and a copy thereof has been furnished to the counsel for the petitioner.

Our attention has been drawn to Clause 'C' of Para 36 (at page 46, volume -1) which shows that neither the transferee company nor the resulting company has any right title or interest in the specified properties shown in the Schedule enclosed with the Scheme which belongs to DLF Assets Private Limited (DAPL). It has also been pointed out that on the

basis of the order passed by Delhi High Court that tax liability of huge amount is likely to accrue against the petitioner companies.

Learned counsel for the petitioner shall file counter affidavit by showing the financial capacity of the companies to meet the tax liability and any other thing which needed to be incorporated. The needful shall be done in respect of the all the issues within two weeks with a copy in advance to the counsel opposite.

List for further consideration on 11.02.2019.

Sd/-

(M.M.KUMAR)
PRESIDENT

Sd/-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

02.01.2019
Aarti Makker